

		The Motion for Final Approval will be heard on July 31, 2025, at 2:00 p.m. in Department CX102. All papers for the Motion for Final Approval are due no later than sixteen (16) court days prior to the hearing date. If Class Counsel cannot meet this deadline, then counsel must request a continuance of the hearing. Failure to do so may result in the issuance of an OSC re Monetary Sanctions. At the Final Approval hearing, evidence supporting the request for an award of attorneys' fees should be presented in the form of time records, or a summary of time spent on the substantive tasks, to enable the Court to evaluate the lodestar and costs claimed. Class Counsel should state by declaration whether time records were kept and created contemporaneously or otherwise. The Court also reminds Plaintiff's counsel that although a determination regarding the amount of the attorneys' fees award will not be made until final approval, the Court is unlikely to approve attorneys' fees in excess of thirty percent (30%) of the Gross Settlement Amount absent unique circumstances. As a result, in the supplemental filing, Plaintiff's counsel should address whether any such unique circumstances exist in this litigation. At the Final Approval hearing, Plaintiff and Class Counsel must provide detailed declarations describing circumstances to justify the requested enhancement award, and addressing factors set forth in <i>Golba v. Dick's Sporting Goods, Inc.</i> (2015) 238 Cal.App.4th 1251, 1272, and <i>Clark v. Am. Residential Servs., LLC</i> (209) 175 Cal.App.4th 785, 804. Plaintiff must provide an estimate of the hours spent participating in this litigation. Plaintiff to give notice of this Court's ruling, including to the LWDA, within five (5) calendar days, and file proof of service.
112	Riley vs. B. BRAUN MEDICAL, INC. 2019-01069273	Motion to Approve PAGA Settlement The Court has reviewed the supplemental materials provided by Plaintiff's counsel and finds that they substantially address the previously identified concerns. Accordingly, Plaintiff Keith E. Riley's Motion for Approval of PAGA Settlement is GRANTED. This is a PAGA-only action. On May 13, 2019, Plaintiffs Keith E. Riley and John Styles, on behalf of themselves and all others similarly situated ("Riley Plaintiffs"), filed a Complaint against Defendants B. Braun Medical, Inc. and staffing company, Manpower US, Inc. alleging several wage-and-hour violations of the Labor Code. On October 7, 2019, pursuant to a stipulation of the parties, the Riley Plaintiffs filed the First

Amended Complaint ("FAC") adding a PAGA claim. On November 27, 2019, the Riley Plaintiffs dismissed their class action claims without prejudice based on an arbitration agreement they had signed with Manpower.

On May 27, 2020, Plaintiff Rolando Ferreira, individually and on behalf of all others similarly situated ("Ferreira"), filed his putative Class Action Complaint against Defendant Braun, OCSC Case No. 2020-01141094, alleging several wage-and-hour violations and a claim for unfair competition. On January 12, 2021, pursuant to a stipulation of the parties, Ferreira filed the First Amended Complaint adding a PAGA claim.

Ferreira moved to consolidate his action with the Riley action, and he separately moved to intervene. On October 1, 2021, the Court granted Ferreira's motion to consolidate and ordered the Riley action to be consolidated for all purposes with the Ferreira action. Riley was designated as the lead case. As part of the same order, the Court denied Plaintiff Ferreira's motion to intervene in the Riley action. The Court held: "Thus, it is only the State, and not Ferreira, who has an interest in the PAGA claim asserted in Riley, and the State is already represented in the Riley case, so its interests are protected. It does not need Ferreira to intervene to protect it. Because Ferreira cannot demonstrate the requisite interest in this action, his motion [to intervene] must be denied." (ROA 167.)

Manpower subsequently moved to compel arbitration of the PAGA claims in the Riley action, and Braun joined in the motion. Although the Riley Plaintiffs did not oppose Manpower's motion, Ferreira did. Before the hearing, the Riley Plaintiffs, Manpower, and Braun entered into a stipulation wherein the Riley Plaintiffs voluntarily agreed to submit their individual PAGA claims to arbitration. The parties also agreed to stay the representative PAGA claims. The Court signed the Stipulation and proposed Order on December 2, 2022, and deemed the motion to compel arbitration as moot.

On March 29, 2023, the Court conducted a Status Conference and discussed with counsel the October 2021 ruling consolidating the Riley and Ferreira matters, as well as the December 2022 Stipulation and Order to arbitrate the Riley claims. After hearing oral arguments, the Court ruled that the Riley and Ferreira actions would be deconsolidated. The Court found that the parties in the Ferreira matter were not subject to the December 2022 Order to arbitrate. Ferreira subsequently moved to re-consolidate the actions, but his motion was denied.

On September 10, 2024, Riley filed the current Motion for Approval of PAGA Settlement. Counsel attests that Plaintiff John Styles abandoned this action years ago and is no longer considered a representative plaintiff. (Counsel Decl., ¶ 4, fn. 1.) The Motion seeks approval of the parties' First Amended Settlement and Release for the non-reversionary Gross Settlement Amount of \$740,000.00. The settlement group consists of 2,009 PAGA Members comprised of: "All current and former allegedly aggrieved non-exempt employees employed by Manpower who were assigned to work at B. Braun locations in the State of California for either Defendant at any time from May 13, 2018, through May 1, 2023."

Based upon the representations of Plaintiff's counsel and a review of the Settlement Agreement, the Court concludes that the \$740,000.00 PAGA Settlement is fair and reasonable. Pursuant to the Settlement Agreement, Defendant B. Braun Medical, Inc. will contribute \$120,000.00, and Defendant Manpower US, Inc. will contribute \$620,000.00 to the Gross Settlement Amount, respectively.

The Court also concludes that total PAGA penalties in the amount of \$445,218.85 are fair and reasonable. Pursuant to state law, seventy-five percent (75%) of the PAGA penalties will be paid to the Labor and Workforce Development Agency ("LWDA") in settlement of all representative claims alleged by or on behalf of Plaintiff and the PAGA Members. Accordingly, the Court approves the following awards and disbursements from the Gross Settlement Amount:

- Attorneys' fees of \$246,666.67 to Plaintiff's Counsel, James Hawkins, APLC
- Litigation costs of \$39,860.48 to Plaintiffs' Counsel, James Hawkins, APLC
- Settlement administration costs of \$8,254.00 to Simpluris, Inc.
- PAGA penalties of \$333,914.14 to the LWDA

The amount equal to twenty-five percent (25%) of the PAGA penalties is \$111,304.71. This amount is to be distributed to the PAGA Members in accordance with the terms of the Settlement Agreement.

The Final Accounting hearing is set for March 19, 2026, at 2:00 p.m. in Department CX102. Plaintiff's counsel must submit a final report regarding distribution of the settlement funds at least nine (9) court days prior to the hearing regarding the status of the settlement administration. The final report must include all information necessary for the

		Court to determine the total amount actually paid to PAGA Members and any uncashed funds remitted to the State Controller's Office. If the uncashed funds are not fully disbursed by the report deadline, counsel must request a continuance of the Final Accounting hearing. Within five (5) court days, Plaintiff's counsel must submit for the Court's signature a revised Proposed Order and Judgment with the following corrections: • Title must include the reference to the Final Judgment; • Remove attorney information from the caption page; • Enter ROA number "391" in the opening paragraph and Paragraph 1 to identify the declaration to which the Settlement Agreement is attached; • Revise amount of the payment to the settlement administrator in Paragraph 4.b., in accordance with this ruling; • Revise the Net PAGA Amount in Paragraph 5, in accordance with this ruling; • In Paragraph 5, include the monetary amounts of the PAGA penalties to be distributed to the LWDA and the PAGA Members; • Paragraphs 2 and 5 must refer to "PAGA Members", not "Covered Employees", so as to be consistent with the Settlement Agreement; • Revise the date and time of the Final Accounting hearing in accordance with this ruling; • Delete Paragraph 10 and its reference to a dismissal with prejudice. Plaintiff to give notice, including to the LWDA, of this ruling, and file proof of service within five (5) calendar days of the date the Order and Judgment is entered.
113	Allison-Wright vs. Aperto Property Management, Inc.	Motion for Approval of PAGA Settlement The Motion for Approval of Settlement Under Private Attorney's General Act filed by Plaintiffs Yvette Cherri Allison-Wright and Juan Carlos Barahona Murillo is CONTINUED to June 26, 2025, at 2:00 p.m. in Department CX102 in order to give Plaintiffs' counsel an opportunity to address issues previously identified by the Court on February 28, 2025. This is a PAGA-only action. On March 14, 2023, Plaintiff Yvette Cherri Allison-Wright, an individual and on behalf of all others similarly situated, filed a Class Action Complaint against Defendant Aperto Property Management ("Defendant"). The Complaint asserted 10 causes of action for various wage-and-

hour violations of the Labor Code and violations of the Unfair Competition Law. Separately, on May 23, 2023, Plaintiff Juan Carlos Barahona Murillo, an individual and on behalf of the State of California and others similarly situated and aggrieved, filed a Representative Action Complaint against Defendant, as Case No. 2023-01327244 ("*Barahona* Action").

On January 11, 2024, pursuant to stipulation and order, Plaintiff Allison-Wright dismissed her class claims without prejudice, and filed the First Amended Representative Action Complaint ("FAC") asserting a single cause of action for PAGA violations. On May 24, 2024, pursuant to stipulation and order, the *Barahona* Action was consolidated with the instant action for all purposes to facilitate the parties' global settlement.

On November 15, 2024, Allison-Wright and Barahona ("Plaintiffs") Plaintiffs filed the instant Motion for Approval of Settlement Under the Private Attorneys' General Act. At the hearing on February 28, 2025, the Court identified the following issues with the moving papers and Settlement Agreement:

1. Defined PAGA Period is problematic because its end date is based on date of Court's approval of the Settlement. This renders the PAGA Period uncertain and increases chance the Court will not find the Settlement to be fair. It also increases probability that Escalator Clause will be triggered.
2. "Released Claims" should not include Labor Code sections 404, 1527, 3366, 3457, 6409.6, or 6432, since these statutes are either irrelevant to the claims alleged or have been repealed.
3. General Release by Representative Plaintiffs includes all claims, including tort claims, that Named Plaintiff have or may have against Defendant "regarding any aspect of their employment." However, Mr. Barahona's minimal enhancement award seems to consider his pending wrongful termination and retaliation lawsuit against Defendant and any possible award for damages associated with that lawsuit. General Release language should either be amended to exclude the claims in Mr. Barahona's pending lawsuit, or the Settlement should be amended to increase his enhancement award.
4. Settlement should provide that administrator will post operative complaint, Settlement Agreement, Aggrieved Employee Notice letter, and Final Order and Judgment on its website for at least 90 days after Court's approval of Settlement.

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| | <ol style="list-style-type: none">5. Mr. Bibiyan must provide a copy of Plaintiff Allison-Wright's LWDA PAGA Notice Letter.6. Counsel must provide copy of proposed notice letter to be sent to the Aggrieved Employees.7. Counsel must provide a Proposed Order and Judgment for the Court's review. |
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Plaintiffs' counsel was ordered to file supplemental papers addressing these concerns no later than fourteen (14) calendar days prior to the hearing date. Counsel was also ordered to provide red-lined versions of all revised papers, as well as an explanation of how the pending issues were resolved, with precise citation to any corrections or revisions.

However, as of April 15, 2025, Plaintiffs' counsel has failed to file the requisite supplemental papers. Accordingly, the hearing on the Motion is continued.

Counsel is once again ordered to file supplemental papers addressing the concerns enumerated above no later than fourteen (14) calendar days prior to the continued hearing date. Counsel must also provide red-lined versions of all revised papers, as well as an explanation of how the pending issues were resolved, with precise citation to any corrections or revisions. A supplemental declaration or brief that simply asserts the issues have been resolved or does not clearly state a specific concern has been resolved, is insufficient and will result in a continuance.

The Court also sets an Order to Show Cause re Monetary Sanctions against Plaintiffs' Counsel on June 26, 2025, at 2:00 p.m in Department CX103 for counsel's failure to comply with the Court's February 28, 2025 Order to file supplemental papers for the continued hearing on the Motion for Approval of Settlement Under the Private Attorney's General Act. Any response to the OSC must be filed at least five (5) court days prior to the OSC hearing.

Plaintiff to give notice, including to the LWDA, of this ruling, and file proof of service within five (5) calendar days